

HOLIDAY LEAVE WITH PAY

NUMBER: 60.010.01

EFFECTIVE DATE: August 21, 2026

POLICY OWNER: CHRO Policy Unit

DIVISION: Chief Human Resources Office

INTERNAL OR STATEWIDE POLICY: Statewide

LAST REVIEWED DATE: August 2026

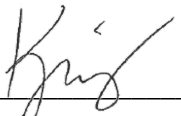
SUPERSEDES: 60.010.01 (2024)

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REFERENCE/AUTHORITY:

- ORS 187.010; 187.020; 240.240; 240.551

APPROVED SIGNATURE:



Kristin Jones, interim chief human resources officer

Statement

Oregon state government provides employees with paid leave on identified holidays and other days, as appropriate.

Applicability

Classified unrepresented, management service, and unclassified service; temporary employees, only where noted.

Forms

- Holiday Calendar

Definitions

Refer to State HR Policy 10.000.01, Definitions.

Policy

1. The following are paid holidays:
 - a. New Year's Day on January 1.
 - b. Martin Luther King Jr.'s Birthday on the third Monday in January.
 - c. Presidents Day on the third Monday in February.
 - d. Memorial Day on the last Monday in May.
 - e. Juneteenth on June 19.
 - f. Independence Day on July 4.
 - g. Labor Day on the first Monday in September.
 - h. Veterans Day on November 11.
 - i. Thanksgiving Day on the fourth Thursday in November.
 - j. The Friday after Thanksgiving Day.
 - k. Christmas Day on December 25.
 - l. Every day appointed by the Governor as a holiday.
 - m. Every day appointed by the President of the United States as a day of mourning, rejoicing, or other special observance only when the Governor also appoints that day as a holiday.
2. Holiday Observance
 - a. Holidays that fall on weekends:
 - i. When a holiday falls on Sunday, the state recognizes the following Monday as a holiday.
 - ii. When a holiday falls on Saturday, the state recognizes the preceding Friday as a holiday.
 - b. A day appointed by the Governor as a holiday is observed on the appointed day.
 - c. A day appointed by the President of the United States and subsequently by the Governor as a day of mourning, rejoicing or other special observance is observed on the appointed day.

- d. Subject to supervisory approval, an employee may be granted time off to observe a religious or cultural holiday not recognized as a paid holiday. Employees may use vacation leave, personal business leave, compensatory time leave, leave without pay, or with supervisory approval, modify their work schedule.

3. Holiday Leave Application

- a. A full-time employee receives eight hours of time off with pay for each paid holiday.
- b. A part-time employee receives time off with pay on a pro rata basis based on their scheduled work hours for each paid holiday.
- c. An unrepresented temporary employee is not eligible for time off with pay on a paid holiday.
- d. An employee on paid vacation or sick leave when a paid holiday occurs shall code the day as holiday leave.
- e. Paid holidays do not apply to:
 - i. Employees applying for or receiving PERS Disability payments
 - ii. Employees on Military Leave without Pay

4. Holidays and Alternate Work Schedules

- a. An appointing authority may adjust an employee's irregular or flexible work schedule for the eight hours of paid holiday leave.
- b. When a paid holiday falls on an employee's regularly scheduled day off, other than Saturday or Sunday, the employee may receive eight hours of compensatory time or schedule their day off for another day, generally in the same pay period.
- c. At the option of the appointing authority, an employee who normally works a rotating shift must observe a holiday on the actual day specified in section 1. and 2. above even though the holiday may fall on Saturday or Sunday.
- d. An agency head may designate an alternate day of observance for any of the above listed holidays for all employees of the agency. When an approved alternate day of observance falls on a normal state business day, the agency maintains the minimum staff coverage unless the agency has effectively communicated to the public that the agency is closed in observance of a holiday on an alternate day.

- e. If an employee works for a 24/7 operation and is scheduled to work on a holiday, refer to section 5. b. below.

5. Working on a Holiday

- a. An employee, whether FLSA exempt or non-exempt, may only work on a holiday when required by, or with the permission of, their supervisor. An employee who works on a holiday without supervisory approval may be subject to disciplinary action.
- b. An employee who is approved to work on a holiday may choose to either receive eight hours (or a prorated amount) of holiday pay, or eight hours (or a prorated amount) of compensatory time.
- c. In addition to either the pay or time described in section b), the employee will also receive compensation at time and one-half for all hours worked on the holiday. An appointing authority may choose to pay the time and one-half worked in cash or compensatory time. Employees may save compensatory time according to State HR Policy 20.005.20, and the Fair Labor Standards Act.
- d. An unrepresented temporary employee required by management to work on a holiday receives straight time pay.

6. Transfer, Hire or Separation and Holidays

- a. If an employee is hired, terminated or transfers on a holiday, the employee receives pay for the holiday.